

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 2969

By: Hays

AS INTRODUCED

An Act relating to Medicaid; mandating the Oklahoma Health Care Authority to include an immigration status attestation on every application; requiring the Oklahoma Health Care Authority to refer illegal aliens to the appropriate federal authority; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 4030 of Title 56, unless there is created a duplication in numbering, reads as follows:

A. The Oklahoma Health Care Authority shall include an immigration status attestation on every application when hospitals or other health care providers are making presumptive eligibility determinations for providing Medicaid or SoonerCare. The attestation shall be a self-certification under penalty of perjury, subject to post-enrollment verification. No hospital or health care

1 provider shall be subject to civil or administrative liability for
2 good-faith reliance on an applicant's attestation.

3 B. The Oklahoma Health Care Authority shall, where required by
4 federal law, provide information to appropriate federal authority
5 all illegal aliens applying for Medicaid or SoonerCare.

6 SECTION 2. This act shall become effective November 1, 2026.

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